THE STATE
Versus
NGONIDZASHE NCUBE

HIGH COURT OF ZIMBABWE
MUZOFA J
CHINHOYI,6 March 2026

Application for bail pending trial

S.J Mukumbi, for the applicant
K Teveraishe, for the State

Muzofa J.

[1] After hearing parties, I delivered a brief *ex tempore* judgement dismissing applicant's quest to be released on bail pending his trial on a murder charge (i.e. contravening section 47 (1) of Criminal Law (Codification and Reform) Act, [*Chapter 9:23*]). A request was subsequently made for me to provide the reasons for the decision, which I now proceed to do

[2] The allegations are that on the 10th of November 2025 the applicant was in bed with his girlfriend. Around 0700hours the deceased, probably the girlfriend's other paramour arrived, knocked at the door calling out the girlfriend's name. The applicant invited his colleagues and directed them to assault the deceased. They assaulted the deceased who later succumbed to the injuries and died.

[3] In considering the application l was alive to the legal positions that an arrested person is entitled to be released on bail either unconditionally or on stated conditions in terms of s50 of the Constitution unless there are compelling reasons to deny him bail and the presumption of innocence. Since the applicant is facing a scheduled offence, in terms of s115 Chapter (2) (a) (ii)of the CPE &A the onus is on the applicant to show on a balance of probabilities that exceptional circumstances exist which in the interest of justice permit his release on bail.

[4] The applicant is therefore required to place sufficient evidence before the court that exceptional circumstances exist for him to be released on bail.

[5] In his application, the applicant indicated that he has a fixed place of abode, he will not abscond and has not shown any tendencies to abscond. After he learnt of the deceased's demise, he surrendered himself to the police. Further, that he will not interfere with witnesses, he has no reason to interfere with them. He relied on the dictum in *S v Bannert 1976 (3) SA 652* that there must be a real risk that the applicant may interfere with witnesses, and not merely bare averment of any reasonable possibility of such interference.

[6] In this statement, the applicant briefly alluded to his defence which is now a requirement in such an application. In *S v Ndlovu 2001(2) ZLR 261(H)* it was held that it is desirable for an accused person to state his defence before the court hearing his bail application as it has a bearing on his assurance that he will be indeed stand trial. His defence is that when the deceased banged the door and caused a scene, he called a friend who, unbeknown to him invited others and assaulted the deceased. The assailants held no brief from him to assault the deceased.

[7] The bail system is not a means to punish an accused but a system intended to preserve the efficacy of the justice delivery system. At its core it is meant to preserve evidence by ensuring non-interference, secure the accused's attendance at trial and that the administration of justice is not compromised.

[8] The State opposed the application on the basis that the applicant is likely to abscond. Section 117 (2) of the CPEA, sets out the broad grounds upon which bail may be denied. More specifically s117 (3) (b) lists the factors relevant in determining the question of the likelihood of applicant absconding should he be released on bail, chief among them being the "…*nature and gravity of the offence or the nature and gravity of the likely penalty therefor*" as well as the "…*strength of the case for the prosecution and the corresponding incentive for the accused to flee."* In *Aitken & Another v Attorney General* 1992 (1) ZLR 249 (S) the court had this to say on abscondment,

"*THE RISK OF ABSCONDMENT*

In judging this risk, the court ascribes to the accused the ordinary motives and fears that sway human nature. Accordingly, it is guided by the character of the charges and the penalties which in all probability would be imposed if convicted; the strength of the state case; the ability to flee to a foreign country and the absence of extradition facilities; the past response to being released on bail; and the assurance given that it is intended to stand trial."

[9] In this case the general facts are not in dispute. The applicant, according to the investigating officer invited his accomplices to assault the deceased, probably to wade him off the girlfriend. The deceased died at the applicant's behest even if he did not personally assault the deceased. He was the brains behind the assault. The key witness is the girlfriend who was with the applicant. She is privy to the communication between the applicant and the accomplices. She confirmed the instructions. Thus, the State case is strong.

[10] Further to that, there is a high likelihood of interference with the key witness who is / was the applicant's girlfriend. The factor must be contextualized as the deceased was a fellow suitor to the girlfriend. In assessing the risk of interference the court may consider '*whether the accused is familiar with any witness or the evidence;… whether the investigation is completed, the accused's relationship with any witness and the extent to which the witness may be influenced by the accused, the ease with which any evidence can be concealed or destroyed; or any other factor which in the opinion of the court should be taken into account.* The witness is very close to the applicant, at the time of hearing the investigations were not complete. The key witness being a girlfriend to the applicant, the proximity of their relationship gives a reasonable apprehension that there is a high likelihood to interfere with the witness.

[11] At this stage the applicant is presumed to be innocent, but the presumption pale into dimness juxtaposed with other compelling reasons aimed at the protection of the public and the due administration of justice. In *James Makamba v The State* SC30/04 ZIYAMBI JA had this to say in this regard;

> *"It is a fundamental requirement of the proper administration of justice that an accused stands trial and if there is any cognizable indication that he will not stand trial, if released from custody, the court the court will serve the needs of justice by refusing to grant bail,* ***even at the expense of the liberty of the accused and despite the presumption of innocence.*** *(See S v Fourie 1973 (1) SA 100 at p10)1."* [Emphasis added].

[12] The applicant confirmed to the investigating officer that he used to be an artisanal miner at Chakari, his accomplices are artisanal miners in Chakari where the offence was committed and the key witness resides. Even if he will be in Gokwe he has links in Chakari which can influence the key witness. He therefore has ties to Chakari where the girlfriend resides. The very fact that the applicant was involved in artisanal mining and his colleagues are or were

artisanal miners exposes the key witness (the girlfriend) to interference. Artisanal miners are known for their violence.

[13] From the foregoing the applicant is likely to interfere with witnesses and abscond. He failed to discharge the onus on him to show exceptional circumstances that he be admitted to bail.

[14] It is for those reasons that the following order was issued.

Application dismissed.

Mugwagwa & Partners, Applicant Legal Practitioners
National Prosecuting Authority, the State's legal practitioners